

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
July 9, 2026
8:30 a.m./1:30 p.m.

9. ESTEFANIA SIMMONS V. RONALD SIMMONS

25FL0176

On April 23, 2026, Respondent filed a Request for Order (RFO) seeking custody and visitation orders as well as support orders and a motion to compel. There is no Proof of Service for this document or any of the other required documents; as such, this matter is dropped from calendar due to lack of proper service.

TENTATIVE RULING #9: THIS MATTER IS DROPPED FROM CALENDAR DUE TO LACK OF PROPER SERVICE.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO* LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
July 9, 2026
8:30 a.m./1:30 p.m.

10. JENNIFER WYMAN RUSH V. SETH WYMAN RUSH

22FL0106

On March 2, 2026, Respondent filed a Request for Order (RFO) for child support orders. He filed his Income and Expense Declaration concurrently therewith. All required documents were mail served on March 4, 2026.

This is a post-judgment request for orders and as such, it was required to be personally served or, if served by mail, Respondent was required to complete and file a Declaration Regarding Address Verification – Post Judgment Request to Modify a Child Custody, Visitation, or Child Support Order, which he has not done. See Fam. Code § 215. Nevertheless, Petitioner filed and served her Responsive Declaration to Request for Order and her Income and Expense Declaration on June 22nd thereby waiving any defect in service.

Respondent asks the court to modify the current child support order utilizing his disability payment amount and Petitioner's monthly IHSS caregiver income. He further asks the court to remove the bonus table entirely.

Petitioner asks the court to deny Respondent's request for support orders. Instead, she asks that Petitioner be imputed with income and ordered to seek work. She further requests the court make a determination as to arrears. Finally, Petitioner requests an order for Section 2030 attorney's fees in the amount of \$7,500.

Family Code sections 3900 et. seq. codifies the general obligation of both parties to support their minor children and adult dependent children. The court maintains broad discretion in determining the amount of child support based on each party's earning capacity. See Fam. Code § 4050. In doing so, the court has the ability to impute an unemployed, or under employed party with income commensurate with his or her earning capacity. *State of Oregon v. Vargas*, 70 Cal. App. 4th 1123 (1999). Such imputation is warranted where the parent has the ability and opportunity to work but simply lacks the willingness to do so. *In re Marriage of Regnery*, 214 Cal. App. 3d 1367 (1989).

Here, Respondent has not submitted any evidence to support his contention that he actually lacks the ability to work and earn an income to support his children. Accordingly, Respondent is ordered to make a diligent job search effort for jobs for which he is qualified. The court further orders Respondent to apply for a minimum of 5 jobs per week and to provide proof of said applications to Petitioner on a monthly basis, until he has secured stable employment. The court continues the matter to October 8th at 8:30 a.m. in Department 5 to receive an update on Respondent's job search efforts.